

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN POLAND

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Poland, grounded in the environmental-decision, planning, and administrative-court system and documented campaigns

*This guide uses the Polish legal terms you will actually encounter (the *decyzja środowiskowa* and its *OOŚ*, the *raport*, the *RDOŚ* and *GDOŚ*, the *odwołanie* to the *SKO*, the *skarga* to the *WSA*, and so on), each defined on first use and in the Glossary. It describes the national framework; the voivodeships and the *gminas* each have their own roles — check locally.*

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in the **Glossary at the end** of this guide.

A note on money. Budgets in this guide are in Polish złoty (PLN). Every figure is indicative — Polish community campaigns range from near-zero (volunteer-run, pro-bono experts, free public data) to well-funded coalitions that commission independent studies. Treat the ranges as a menu, not a bill.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Poland. Projects backed by developers and waved through by a municipality still fall when opposition is organised, documented, and legally sharp — because Poland's system gives communities two real levers: a mandatory **environmental decision** — **decyzja o środowiskowych uwarunkowaniach** (the *DŚU*, or "*decyzja środowiskowa*") — that a project must obtain **before** a building permit, complete with an **environmental impact assessment (OOŚ)** and public participation on the larger projects; and a two-tier administrative-court system (the **WSA** and the **NSA**) that regularly annuls unlawful decisions.

Poland also gives environmental groups a real, if procedural, route to standing. An **environmental organisation** (*organizacja ekologiczna*) that formally joins the proceeding — by declaring its participation under **article 44 of the EIA Act** — gains the rights of a party, including the right to appeal and to go to court. This is a crucial, technical point: Polish courts, including the Supreme Administrative Court (NSA) in a 2025 ruling, have held that an organisation that did **not** join at first instance generally cannot appeal later. So joining early, and filing your comments during participation, is not a formality — it is what unlocks every later legal step, and it builds the record a court will read.

Be clear-eyed, though. The system usually leans toward "yes": projects bring investment and jobs, and coal, extraction, roads, and industrial and energy projects enjoy strong political backing in parts of Poland. Communities across the country — from open-pit lignite mines (the long fights around Turów and proposed new pits) and quarries to waste incinerators, industrial livestock farms, roads, and gas and energy infrastructure — have organised against projects they say were approved with thin assessment. The tools below are how they have pushed back anyway, and sometimes won.

What "winning" realistically means. Only a minority of destructive projects are stopped outright, and rarely by one lever. But "stopped outright" is not the only win. A campaign can force a refused or heavily conditioned environmental decision; delay a project for years until its economics collapse; win a court annulment that sends it back to the start; shrink or relocate it; or so raise the political cost that the developer or the authority quietly drops it. Each has happened in Poland. The realistic goal is to make approval slow, expensive, legally risky, and politically painful — and to be legally ready, and to have *joined the proceeding*, at the exact moment the decision is made.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, which authority decides, under which procedure, and the date the decision becomes final.
2. **Documentation** — build an evidence record (baseline, impacts, health/economic harm) strong enough for the public comment and, if needed, a court.
3. **Local opposition** — organise a durable coalition (and, importantly, an organisation that can join the proceeding), because sustained pressure over months moves officials.
4. **Legal challenges** — join the proceeding, comment, then use the *odwołanie* and the WSA.
5. **Media strategy** — generate coverage that raises the political cost of approval.

No single step wins alone. Documentation gives the legal challenge its substance; the coalition sustains the media pressure; joining the proceeding unlocks the appeal; the deadlines discipline the whole campaign. Run them in parallel over a campaign that usually lasts a year or more, adjusting emphasis as the situation changes.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

In some places and for some project types the deck is stacked: a municipality committed to a project, a "public purpose" (*cel publiczny*) designation, or a dedicated special-track statute (Poland has used *specustawy* to speed roads and strategic investments) that compresses the procedure. This does not make opposition pointless — it changes which levers work. When participation is narrowed, the courts and the media matter more, and procedural shortcuts themselves become grounds for a challenge. A rushed process is a process with mistakes in it. Section 10 deals honestly with tilted systems, including how to read whether yours is a "clean," "moderately tilted," or "severely tilted" fight.

How to use this guide

Read Sections 1-3 once. Then work Section 4 (Target Identification) immediately — it produces the facts every other step needs, above all your deadlines and the art. 44 moment. Sections 5-8 run in parallel, not in order. Sections 9-11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and when to keep going.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Poland is a decentralised state: power over land and environment is split between the central State, the sixteen **voivodeships** (*województwa*), and local government — the **gmina** (municipality), **powiat** (county), and their elected leaders. Most fights are won or lost at the municipal and regional level, not in Warsaw.

The levels of government — and what each one controls

The gmina (municipality). The elected head — **wójt** (rural), **burmistrz** (town), or **prezydent** (city) — is the authority that issues the **decyzja środowiskowa** for most local projects. The gmina also adopts the **local spatial plan (MPZP — miejscowy plan zagospodarowania przestrzennego)** or, where there is none, issues a **planning decision (WZ — warunki zabudowy)**, against which projects are judged. Local documents — planning notices, council resolutions, the public announcements (*obwieszczenia*) that open participation — appear at this level first. The gmina council (*rada gminy*) is also where you can lobby elected councillors and press for a formal resolution against a project; a gmina that opposes a project, or refuses to provide it a favourable MPZP, is a powerful ally.

The county (powiat) and the starosta. The **starosta** (county head) typically issues the **building permit (pozwolenie na budowę)** — a separate decision, later in the sequence, that must conform to the environmental decision and the MPZP/WZ. It is a second point at which an unlawful project can be challenged.

The region (voivodeship level). The **RDOŚ** (Regionalna Dyrekcja Ochrony Środowiska — Regional Directorate for Environmental Protection) is the environmental authority that issues the *decyzja środowiskowa* for major projects (roads, projects affecting **Natura 2000**, and others), and provides opinions/agreements (*uzgodnienia*) on projects decided by the gmina. **Wody Polskie** (the State Water Holding) handles water-related opinions and decisions. Sanitary opinions come from the **sanepid** (state sanitary inspectorate). Note the split: for a gmina-issued decision the RDOŚ is a consulted body; for an RDOŚ-issued decision it is the decision-maker, and the appeal goes up to the GDOŚ.

The central State. The State sets the framework law — above all the **EIA Act (ustawa OOŚ)**: the Act of 3 October 2008 on access to environmental information and its protection, public participation in environmental protection, and environmental impact assessments. The list of projects requiring an environmental decision is fixed by a **Council of Ministers regulation** (currently the 2019 regulation), which sorts projects into those that **always** significantly affect the environment (full OOŚ mandatory) and those that **potentially** do (screened). The **GDOŚ** (Generalna Dyrekcja Ochrony Środowiska — General Directorate) is the central environmental authority and the appeal body for RDOŚ decisions.

Which one is "yours"? Ask: who issues the environmental decision, and who grants the building permit? A quarry, a livestock farm, or a small industrial project is usually the gmina (*wójt/burmistrz/prezydent*), with the starosta granting the permit; a road, a Natura 2000-affecting project, or a large one is often the RDOŚ; a hydrotechnical project runs through Wody Polskie. Pinning this down is Step 1, and it decides the deadlines, the appeal body (SKO vs GDOŚ), and the forms. Getting it wrong — appealing to the wrong body — can cost you the case.

How a decision is actually made — the journey of an application

For a project requiring full **OOŚ** (the "always significant" tier, or a "potentially significant" project screened into assessment), the path is roughly:

1. **Application.** The developer (*inwestor*) applies for the *decyzja środowiskowa*, filing a project description (a *karta informacyjna przedsięwzięcia*, KIP) and — where assessment is required — an **environmental impact report (raport OOŚ)**, its own technical study of harm and mitigation). The report is the single most important document in the fight, because it is where the developer, on the record, describes the damage.
2. **Public announcement and participation.** The authority publishes an announcement (*obwieszczenie*) and — this is your moment — **opens a public-comment window** (at least 30 days) in which **anyone can submit comments (uwagi i wnioski)** on the project and the report. An environmental organisation can, at this stage, **declare its participation as a party under art. 44 of the EIA Act** — the single most important procedural act in the whole campaign for an organisation.
3. **Opinions and agreements.** The authority gathers the RDOŚ/sanepid/Wody Polskie opinions (*opinie* and *uzgodnienia*) and assesses the report and the comments; a **Natura 2000 assessment** is required where a protected site may be affected.
4. **The environmental decision (DŚU).** The authority issues the *decyzja środowiskowa* — setting the environmental conditions, or refusing. This decision **binds** the later building-permit stage.
5. **The building permit.** With the environmental decision in hand (and a conforming MPZP/WZ), the starosta grants the building permit. **The environmental decision and the permit** are the acts you would challenge.

Smaller "potentially significant" projects go through **screening**: the authority decides whether a full OOŚ is needed. A "no assessment needed" decision (an *postanowienie* not to require OOŚ) can itself sometimes be challenged, especially where the project plainly should have had full assessment.

Why participation is the hinge. Everything downstream — the decision, the permit, any court case, and (for organisations) the very right to appeal — is built on this stage. Comment in writing, and — if you are an organisation — join under art. 44. A problem not raised here is far harder to raise later, and for an organisation that failed to join, there may be no "later" at all.

The rulebook — the policies that decide the outcome

- **The spatial plan (MPZP) or planning decision (WZ).** Does the project fit the plan and the land's designation? A project inconsistent with the MPZP can be refused; changing the plan to allow a project is itself a contestable decision, and the plan-making process has its own participation rights worth using.
- **Environmental designations.** Is the site in or near a **Natura 2000** site, a landscape park (*park krajobrazowy*), a nature reserve, or other protected area? Projects affecting Natura 2000 need an appropriate assessment; a defective one is a classic vulnerability.
- **Sectoral law.** Water (the Water Law — *Prawo wodne* — and *Wody Polskie*), geology and mining (the Geological and Mining Law — *Prawo geologiczne i górnictwo*, central to lignite and quarry fights, including the separate mining-concession decision), waste, heritage (the *konserwator zabytków*), and roads each add their own permits and grounds.
- **The EIA Act itself.** Was the right procedure used? Was participation real and long enough (at least 30 days)? Were **alternatives** genuinely assessed (Polish law limits the authority's freedom to pick a variant other than the applicant's without justification, which cuts both ways)? Were **cumulative impacts** assessed, or was a project unlawfully **split** to stay under a threshold?

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Projects bring investment, jobs, and local tax revenue; energy and extraction (notably lignite) carry strong regional political and employment backing; roads and strategic investments advance national programmes; municipalities compete for investors, and a big taxpayer can dominate a small gmina's budget and politics. None of this is illegal, but it explains the default tilt toward approval — and why *procedural* rigour (were alternatives assessed? was participation real? was the Natura 2000 assessment adequate?) is often a community's best lever: it holds a "yes"-leaning system to its own rules.

The overseers — who watches the decision-makers

- **The administrative courts (WSA → NSA).** They review the legality of administrative decisions — procedural and substantive — and can **annul** them. This is the sharpest tool in the box.
- **The SKO and GDOŚ** — the appeal bodies that re-examine the decision on the merits before court.
- **The NIK** (Supreme Audit Office) — audits the legality and value of public action.
- **The Rzecznik Praw Obywatelskich** (Ombudsman) — for citizens' rights and maladministration.
- **The prosecutor (prokuratura)** and the environmental inspectorate (**WIOŚ/GIOŚ**) — for environmental offences and enforcement.
- **The CBA** (Central Anti-Corruption Bureau) — for corruption.

Naming the right overseer in a letter signals you understand the system, and copying one in can change how an authority responds.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Polish and European campaigns, not a controlled study. Use them to prioritise effort. One published figure worth knowing: Polish sources cite that appeals in environmental matters succeed in a meaningful share of cases — roughly a quarter to two-fifths — so the appeal stage is genuinely far from hopeless.

Individual Step Success Rates

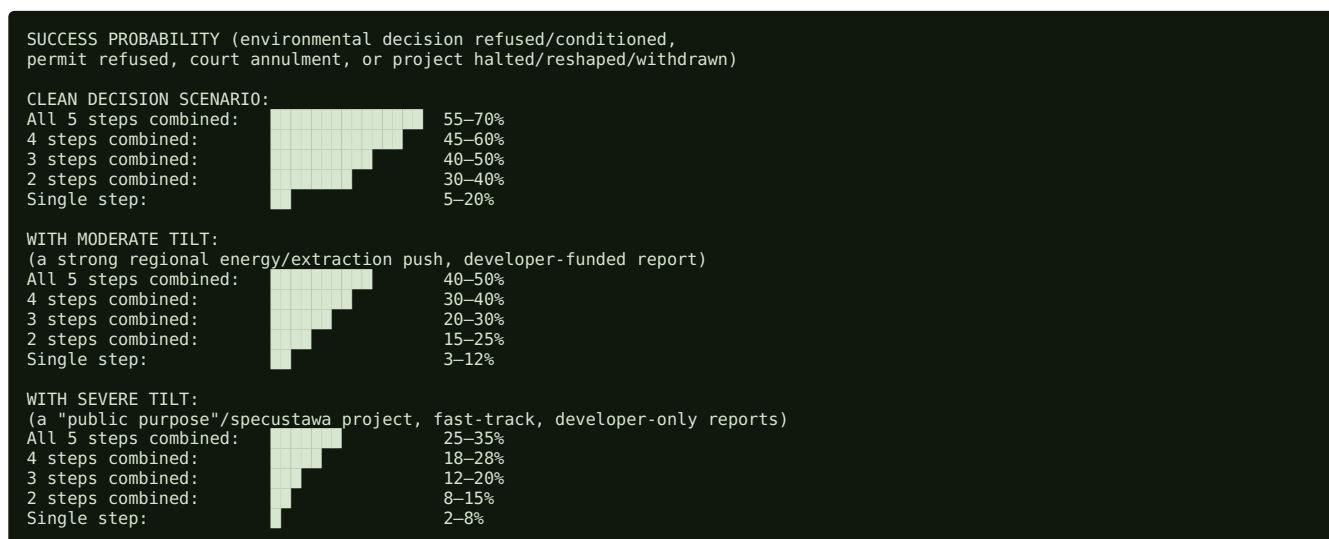
Approach	Success Rate	Timeline	Cost (PLN)	What "Success" Means
Documentation only	5-10%	3-4 months	2,000-30,000	Project slowed; public better informed
Local opposition only	15-20%	6-12 months	3,000-40,000	Public pressure; minor modifications
Legal only	20-35%	12-36 months	1,000-40,000	Slow; strong if the procedural defect is real; appeal stage genuinely useful

Media only	10-15%	3-6 months	2,000-20,000	Public knows; no action by itself
Docs + opposition	25-35%	12 months	8,000-50,000	Slowed; some modifications
Docs + legal	35-45%	12-24 months	10,000-60,000	Stronger, evidence-backed case
Opposition + legal	40-50%	12-24 months	12,000-60,000	Political pressure strengthens the case
Opposition + media	30-40%	9-12 months	6,000-40,000	Visibility creates political pressure
All 5 steps combined	55-70%	12-30 months	25,000-100,000	Environmental decision refused/conditioned, permit refused, court annulment, or project halted/withdrawn/reshaped

Key insight: all five steps together are roughly **3-4x more effective** than any single step.

A note on legal cost: filing comments and joining under art. 44 is free; the odwołanie (administrative appeal) is free. Only the court stage carries fees, and they are modest — the WSA filing fee is 200 PLN — though a cassation to the NSA must be drafted by an adwokat or radca prawny. Legal aid (prawo pomocy) can cover fees and counsel on income grounds, and some environmental organisations litigate these cases with their own lawyers. So the "Legal" figures above are not a hard floor — the main unavoidable cost is good expert evidence.

Effectiveness Visualization



How to read this honestly. Even in a severe tilt, a full five-step campaign has a real, non-trivial chance — and every such campaign also produces delay, cost, precedent, and a trained community ready for the next project. A "loss" that delays a project two years and forces a redesign is not nothing. Conversely, a single-step effort in a clean scenario is still likely to fail, and for an organisation that never joined under art. 44 the legal odds collapse to near zero regardless of the merits. The message is the same in every scenario: **combine the steps, join early, and start early.**

Step Importance Ranking (When All Combined)

1. **Documentation** — without it, nothing else has substance.
2. **Legal challenge** — the odwołanie plus the WSA, unlocked by joining the proceeding.
3. **Local opposition** — sustains pressure and the coalition.
4. **Public participation (comment + art. 44)** — cheap, essential, and the gateway to standing.
5. **Media** — the amplifier that multiplies all of the above.

Winning Polish campaigns combined a rigorous file, a durable coalition and a registered organisation that joined early, sustained media, and a well-aimed appeal-and-court challenge on procedural grounds — no single track alone.

What Polish Campaigns Actually Show

A few patterns recur. **Documentation is the foundation**, because only a rigorous file gives substance to everything else. Poland's distinctive lever is the **appeal (*odwołanie*) and the administrative court (WSA)**, unlocked by **joining the proceeding early as a party or a registered organisation** — the step that preserves standing. **Public participation** is the cheap, essential gateway, and **EU environmental law** a powerful backstop where national process falls short. **A durable coalition and sustained media** supply the political weight. **The ceiling depends on the merits and the politics** — a lawfully-approved project is usually delayed or conditioned, while a defective decision can be overturned. The through-line: **build the file, join early, use the *odwołanie* and the WSA with EU law behind them, and hold the coalition and coverage.**

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: the exact location and footprint (coordinates, hectares), the project type and size, what is on the land now (habitat, farmland, watercourses, homes, heritage), and what the project would do to it. Obtain the developer's **report OOS** — it is public during participation — and read what *it* admits. Developers' own reports routinely concede impacts ("temporary exceedance," "residual effect on species X," "loss of Y hectares"); those admissions are your strongest raw material, because they come from the other side. Make a list of every admitted impact with its page reference — the skeleton of your comments.

Practical sources: the *obwieszczenie* and the authority's public register of environmental documents; the gmina's MPZP and geoportal; GIS viewers for maps; the Natura 2000 standard data form for any nearby site; GIOŚ/WIOŚ for monitoring data; and Wody Polskie for water.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) which authority issues the **decyzja środowiskowa** (usually the wójt/burmistrz/prezydent; the RDOŚ for roads/Natura 2000/large projects; Wody Polskie for hydrotechnical); (b) which body grants the **building permit** (usually the starosta); and (c) the appeal body (the **SKO** for gmina decisions, the **GDOŚ** for RDOŚ decisions). Name the officials and the political leadership of each. These are the addressees of every letter and the parties in any appeal or court case. Elected heads (wójt/burmistrz/prezydent) feel political and media pressure; the RDOŚ, as a state body, responds more to legal and procedural pressure.

Question 3: What Specific Action Stops It?

A project can be stopped at several points: refusal of the environmental decision; refusal of the building permit; annulment of either on appeal (SKO/GDOŚ) or by the WSA; refusal of a mining concession (for extraction); or a political withdrawal. Map the decision points and their dates. Aim pressure and evidence at the specific act that, if blocked, stops the project.

Question 4: When Is the Decision Final?

This is the deadline that disciplines everything. Find and diarise: - The **public-comment window** (announced in the *obwieszczenie*) — at least 30 days — and, for organisations, the moment to declare participation under **art. 44**. - The expected environmental-decision and building-permit dates. - The **appeal deadline: 14 days** to file the *odwołanie* (art. 129 §2 KPA) from delivery of the decision. - The **court deadline: 30 days** to file the *skarga* to the WSA from delivery of the second-instance (SKO/GDOŚ) decision. - The **cassation deadline: 30 days** to file to the NSA from delivery of the WSA judgment with reasons (counsel required). Diarise all of these the moment they appear; they are short and unforgiving, and the 14-day appeal window is easy to miss over a holiday.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which firms are contracted, whether land changed hands shortly before the proposal, and whether any decision-maker has a connection to the developer. Use public sources — the court/business register (**KRS**) for ownership; the land-and-mortgage register (**księgi wieczyste**) for who bought what and when; officials' asset declarations (*oświadczenia majątkowe*); and public-procurement records. Build a dated, sourced timeline. Keep it rigorous and evidenced; Section 11 covers doing it safely.

Output of Step 1: a one-page fact sheet with the project's exact description, the deciding bodies and their named officials, the appeal body, the specific act to block, every deadline (including the art. 44 moment), and the money map. Everything else builds on this page.

Worked example: identifying the target in a mega-farm fight

Suppose a 40,000-bird poultry facility is proposed on the edge of your village. Working the five questions: Q1 — the raport admits significant ammonia and odour emissions, increased heavy-vehicle traffic, and manure-handling risks to a nearby stream; you list each with its page. Q2 — poultry above the regulation threshold is "always significant," so full OOS applies; the wójt issues the decision, the RDOŚ and sanepid give agreements/opinions, the starosta will issue the building permit, and the appeal will go to the SKO. Q3 — the act to block is the wójt's environmental decision; refuse or annul it and the permit cannot follow. Q4 — the *obwieszczenie* gives 30 days for comments and, for your newly registered association, the art. 44 moment; you note the 14-day appeal clock that will start on delivery. Q5 — the KRS shows the *inwestor* is linked to an existing operator; the *księgi wieczyste* show the plot was bought eight months earlier. In an afternoon, rumour has become a battle map with named bodies, exact deadlines, admitted impacts, and the one procedural step — joining under art. 44 — that will decide whether you can ever reach a court.

STEP 2: DOCUMENTATION

Documentation separates a campaign courts and the public take seriously from one dismissed as NIMBY sentiment. It is also the most under-done part of most campaigns, because it is slow. Do it anyway: the group that comes to the comment window with a sourced, expert-reviewed file wins arguments the group with a petition and strong feelings loses. Build three layers.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — because you cannot show harm without a baseline, and once the ground is cleared the "before" is gone forever. Start the day you learn of the project.

Water. Request and record water quality and flows from **Wody Polskie** and the environmental inspectorate (**WIOŚ/GIOŚ**) monitoring. Note aquifers, wells, springs, seasonal watercourses, and any protected water bodies. Water is often the strongest argument in Poland — a mega-farm's manure risk to a stream, a quarry's or lignite pit's effect on the water table (the Turów dispute turned in part on cross-border groundwater), or an industrial plant's water demand moves neighbours and regulators alike.

Air and odour. Obtain existing air-quality data from GIOŚ; for livestock and waste projects, odour is a decisive, everyday harm neighbours feel. Poland's serious air-quality problems make air arguments resonate.

Biodiversity and habitats. Document protected species and habitats using the GDOŚ/RDOŚ inventories, the **Natura 2000** standard data forms for any nearby site, and reputable NGO and citizen-science records. Photograph and date sightings. Species and habitat impacts drive the Natura 2000 assessment, whose defects are among the most annulable.

Land, heritage, and people. Use the land-and-mortgage register and cadastre for parcels and current use; document footpaths and common land; record heritage via the *konserwator zabytków*. Record the human baseline — population, farming livelihoods, health context — using **GUS** (the Central Statistical Office) and regional health data.

How to hold it. Keep everything dated, sourced, and photographed, in a shared, backed-up folder. A well-organised baseline is more useful than a merely large one. This layer alone can take a month; it is the foundation everything stands

on.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the developer's **raport OŚ** — read it critically, line by line, and catalogue four things:

1. **Admitted impacts** — every harm the raport itself concedes, with page references. Unarguable.
2. **Underestimated or omitted impacts** — where the raport downplays or ignores harm. **Cumulative impacts** are the most common and most powerful gap: several small poultry farms or quarries, each assessed alone, can add to a landscape-scale impact never assessed as a whole. Polish and EU law require cumulative assessment; its absence is a strong ground.
3. **Alternatives** — did the raport genuinely assess real alternatives, including the zero option? Inadequate alternatives analysis is a recurring reason for annulment.
4. **Project-splitting** — was one big project sliced into pieces to stay under a threshold or avoid joint assessment? Flag it; it can unravel the whole decision.

Get expert eyes on it. A critique carries far more weight when a qualified professional — a biologist, hydrologist, acoustician, or environmental engineer — has reviewed and signed it, even pro bono. Universities, retired professionals, and national environmental organisations are sources of expertise and sometimes of experts willing to help. The goal is a written impact critique that reads as technical, not emotional, and that an authority and a judge can act on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what moves neighbours, councillors, and reporters. Document:

- **Health** — ammonia and odour from livestock, dust and water loss from open-pit mining and quarries, emissions from incinerators, noise, and traffic. Odour and health from industrial livestock, and dust and water from mining, are the arguments that most reliably move Polish communities and councils, because they are about people's health and daily life.
- **Economy and livelihoods** — the effect on existing agriculture, tourism, and property values. Quantify it: hectares of farmland lost, tourism value at risk, jobs compared. The argument that a project trades permanent local livelihoods and health for temporary construction jobs and a distant owner's profit is both true and persuasive.
- **Property and place** — effects on property values and on the viability of a village's future.

Package this layer twice: a rigorous version for the comments and any court, and a plain-language one-pager for neighbours and the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record before ground is cleared; request environmental data early. Public bodies have legal deadlines to answer.
- **Phase 2: Impact (Months 2-3)** — dissect the raport; line up expert review before the comment window opens so your critique is ready to file.
- **Phase 3: Health/Economic (Months 3-4)** — quantify the human and economic stakes and package them.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data** — file comments on time with your best evidence; a strong-enough argument on the deadline beats a perfect one filed a day late.
- **Only environmental data** — officials and courts respond to health, economic, and procedural arguments too. Breadth wins.
- **No expert review** — a raport critique no qualified person has signed is easy to wave away. One page from a credentialed expert can change the file's weight.
- **Ignoring the proponent's own admissions** — the raport is a goldmine of concessions. Quote it back verbatim, with page numbers.

Documentation Budget Breakdown (PLN)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Baseline data gathering	0-500	1,000-6,000

baseline data gathering	0-500	1,000-6,000
Expert technical report (hydrology/ecology/acoustics)	0 (pro bono)	3,000-20,000
Independent noise/air/odour measurement	0-1,000	1,000-8,000
Legal consultation on the file	0 (clinic/NGO)	500-5,000
Printing/outreach materials	200-800	800-2,000

Much can be done for near-zero with pro-bono experts and public (GIOŚ/GUS) data. Spend where a paid report materially strengthens a likely appeal or court case — one solid report on the decisive issue (usually water, odour, a protected species, or cumulative impact) is worth more than five general ones.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it doubles as a guide to the sources this map points you toward.

Start at the gmina's own website and the BIP. In Poland, the official documents for a project — the application, the raport OOS, the *obwieszczenie*, the environmental decision — are published by the authority handling it: usually the gmina (wójt/burmistrz/prezydent) or the RDOŚ. Each public body runs a **BIP** (*Biuletyn Informacji Publicznej*, the public-information bulletin), and there is a **public register of documents on the environment**. Bookmark the relevant BIP and register on day one and check weekly; the legal clock runs from what is announced there.

The project file and the report. Get the developer's **raport OOS** (and the KIP) the moment the public-comment window opens — it is public, and it is where the developer admits harm in its own words. If it is not online, request it (the access route is below).

Baseline environmental data. Water quality and flows from **Wody Polskie** and the inspectorate (WIOŚ/GIOŚ); air data from GIOŚ; protected-species and habitat records from the GDOŚ/RDOŚ inventories and the Natura 2000 standard data form for any nearby site; land use from the cadastre; heritage from the *konserwator zabytków*.

Ownership and money. Company ownership and directors from the court/business register (**KRS**); parcels, owners, and transfers from the land-and-mortgage register (**księgi wieczyste**); officials' asset declarations (*oświadczenia majątkowe*); and public-procurement records for related contracts.

How to force a document into the open. Under the EIA Act (implementing the Aarhus Convention), anyone can request environmental information held by a public body without proving a specific interest, and the body must answer within a set period. Use the wording in Section 8E. For other documents, the public-information access law applies.

Tie it to the map. The dots and layers on this map are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the organisations, legal-aid groups, and watchdogs already working nearby. Treat a mapped entry as the first thread to pull, then follow it into the registries above.

Where the Polish Record Lives

Much of the Polish paper trail is public. The **environmental-decision file** and the assessment behind it are held by the authority that issued them — often the municipality (*wójt/burmistrz/prezydent*) or the **Regional Directorate for Environmental Protection (RDOŚ)** — and the public-information bulletins (*Biuletyn Informacji Publicznej*, *BIP*) publish decisions and notices. Requests under the access-to-public-information and access-to-environmental-information laws compel disclosure, and a refusal is itself challengeable. For projects with EU dimensions, the **Aarhus Convention** and EU environmental law are both a standard the authorities must meet and a route beyond a captured national decision. Gather these against the chain of decisions, and register your organisation and join the proceeding early — because in Poland, standing won at the start is what makes the rest usable.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Sustained, visible, local pressure is the biggest political factor in whether an authority says no. But in Poland a **registered organisation** matters for a decisive legal reason as well: an **environmental organisation** (a registered *stowarzyszenie* — association — with statutory environmental aims) can declare participation in the proceeding under **art. 44 of the EIA Act** and thereby gain the rights of a party, including the right to appeal to the SKO/GDOŚ and to go to the WSA. Courts have held that an organisation that did not join at first instance generally cannot appeal — so registering an association early, with a statute stating environmental protection as an aim, and **joining the proceeding during participation**, is both how you organise and how you unlock the strongest legal lever. This is the single most important organising fact in Poland, and it must be done before the environmental decision issues, not after.

Two further principles: **breadth beats intensity** (a coalition including farmers, hunters, tourism businesses, and pensioners is harder to caricature than "the ecologists"), and **durability beats spikes** (a campaign that sustains pressure for a year beats one that stages a big protest and vanishes).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: One-on-one conversations. Start with the people most directly affected — neighbours whose land, water, air, or health is at stake; farmers; local businesses. Personal conversations, not mass messages, build a durable core. Listen first: concrete reasons (a well, a family plot, the smell that will reach the school) motivate more than abstractions.

Step 1b: Affinity groups by concern. Let people plug in through what they care about — water, farmland, air/odour, health, landscape. Different concerns reach different neighbours.

Step 1c: Register the association (early). Form a *stowarzyszenie* with a statute including environmental protection, and be ready to **join the proceeding under art. 44** as soon as it opens. Ordinary registered associations and the simpler "stowarzyszenie zwykłe" can qualify; confirm the current requirements, and register in time to join. This is the vehicle that can later appeal and go to court, receive donations, and sign coalition agreements.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Step 2a: Community forum. A public meeting to inform, gather support, and recruit; bring the maps, the report's own admissions, and the deadline. A clear ask ("file a comment — here's how; here's why we're joining as a party") converts worry into submissions.

Step 2b: Opposition materials (factsheets). One page, factual, sourced; lead with health/economic/environmental stakes and the deadline. Include a copyable model comment. Make versions for social media and for the village noticeboard and shop.

Step 2c: Public petition and mass comments. A petition localises opposition and feeds mass *uwagi* — many individual comments are stronger than one. Run workshops where people file together.

Step 2d: Media at launch. Time it to the comment window so coverage and the deadline reinforce each other.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Organisation outreach. Bring in national/regional environmental organisations (several litigate environmental decisions and can join as parties under art. 44 in their own right), farming and residents' associations, and heritage groups. Each adds credibility, reach, and sometimes lawyers — and multiple organisations joining under art. 44 multiplies the parties who can appeal.

Step 3b: Coalition agreements (written). Agree roles, spokespeople, decision-making, and messaging in writing before disagreements arise. Who joins under art. 44? Who instructs the lawyer? Who holds the money? Writing it down prevents the internal splits that sink more campaigns than developers do.

Step 3c: Coordinated public work. Joint comments, joint art. 44 participation, joint press, shared experts, shared legal costs.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Public demonstrations. Lawful, visible, well-organised actions keep the issue alive and signal durability. Public assembly is protected in Poland but organised gatherings have notice requirements under the assembly law; comply and prioritise safety.

Step 4b: Media campaign (ongoing). Feed the story new pegs — the environmental decision, the council vote, the

appeal, the court filing — so coverage continues rather than spiking once.

Step 4c: Prevent failure points. Campaigns fade when they miss the comment/art. 44 window, the 14-day appeal, or the 30-day court deadline; rely on sentiment; splinter; or peak too early. Diarise every deadline twice, build the file, agree roles in writing, and pace to the decision.

Opposition Building Budget: Year-Long Campaign (PLN)

Highly variable. A lean, mostly-volunteer campaign runs on a few hundred to a few thousand złoty (registering the association, printing, outreach). A campaign expecting litigation should budget for expert reports (3,000–20,000 PLN) and legal costs (the WSA filing fee is a modest 200 PLN, but counsel for a cassation to the NSA is required, and expert evidence is the main cost). Polish community campaigns typically fund the legal stage through crowdfunding (which doubles as a show of support) and coalition cost-sharing. Keep transparent accounts — it protects the campaign's credibility.

STEP 4: LEGAL CHALLENGES

Poland gives communities a strong legal toolkit, but it runs on short deadlines and one crucial gateway — joining the proceeding. Three tracks.

TRACK 1: PARTICIPATION — THE FRONT DOOR (comment + art. 44)

During the public-comment window, file written comments (*uwagi i wnioski*) on the project and its raport OOS. This is open to anyone and costs nothing. **For an environmental organisation, this is also the moment to declare participation as a party under art. 44 of the EIA Act** — the step that unlocks the right to appeal and to litigate. Treat these as two distinct acts done at once: the comment (anyone) and the art. 44 declaration (your organisation).

- **It builds the record and unlocks standing.** The authority must consider the comments; and for an organisation, joining now is what makes a later appeal admissible. An organisation that comments but does not formally join may still find itself locked out of the appeal — so make the art. 44 declaration explicit and in writing.
- **Aim at procedure and substance both.** Strong grounds include: inadequate assessment of **alternatives**; ignored **cumulative impacts**; unlawful **project-splitting**; a defective or too-short participation phase; an inadequate **Natura 2000** assessment; and reliance on an outdated or incomplete raport.
- **Mass and quality both count.** Many individual comments signal political weight; a few technically rigorous, expert-backed ones build the legal case. Do both.
- **Keep proof.** File through the authority's registry or ePUAP and keep the dated confirmation — both of your comments and of your art. 44 declaration.

TRACK 2: ACCESS TO INFORMATION (the evidence engine)

The EIA Act (implementing the Aarhus Convention) guarantees broad **access to environmental information**: anyone can request environmental data and documents held by public bodies without proving a specific interest, and much is published in the **public register of documents on the environment**. Use this to obtain the full project file, the raport, the KIP, and the authorities' opinions and agreements. The general access-to-public-information law (*ustawa o dostępie do informacji publicznej*) covers other documents. Use access early and repeatedly — what you obtain becomes the evidence in your comments and, later, your appeal and skarga.

TRACK 3: THE ADMINISTRATIVE APPEAL AND THE COURTS

The administrative appeal (odwołanie) — do this first. A party (including an organisation that joined under art. 44, and directly affected residents — the owner and neighbours in the impact zone) may appeal the environmental decision: - **Deadline: 14 days** from delivery of the decision (art. 129 §2 KPA), filed **through** the first-instance body. - **To whom:** the **SKO** (Samorządowe Kolegium Odwoławcze) if the decision was issued by the wójt/burmistrz/prezydent; the **GDOŚ** if by the

RDOŚ. - The appeal body re-examines the case **on the merits** and can uphold, change, or annul the decision (and send it back). This stage is genuinely useful — Polish sources report environmental appeals succeeding in a meaningful share of cases. Put your best procedural and substantive grounds here in full; do not save them for court.

The court challenge (skarga to the WSA). If the second-instance decision still stands, challenge it before the **Wojewódzki Sąd Administracyjny**: - **Deadline: 30 days** from delivery of the SKO/GDOŚ decision, filed through the body that issued it. - **What the court reviews:** legality only — whether the authorities broke the law or the procedure — not whether the project is "good." It can **annul** the decision and send it back, binding the authority to the court's legal interpretation. It can also declare the decision invalid on the grave grounds in art. 156 KPA. - **Suspension (wstrzymanie wykonania).** *You can ask the WSA (and even the authority) to suspend execution of the decision while the case is decided — powerful when the developer could otherwise start work and cause serious or irreversible harm before judgment. If the court accepts the risk of serious harm, it can block the works until the ruling.* - **Cost and appeal.** *The WSA filing fee is modest (200 PLN). A further cassation appeal to the NSA (Naczelny Sąd Administracyjny) is possible within 30 days of delivery of the judgment with reasons, but must be drafted by an adwokat or radca prawny.* Legal aid (*prawo pomocy*) may cover fees and counsel on income grounds. - **Standing, again.** Only a party can appeal and litigate — which is why the art. 44 step (Track 1) is indispensable for organisations; directly affected residents are parties on their own account.

The three legal challenge types

TYPE 1: PROCEDURAL / ADMINISTRATIVE CHALLENGE (fastest, cheapest, often highest-yield)

Attack how the decision was made — defective participation, ignored comments, missing Natura 2000 or alternatives analysis, project-splitting. A procedural win annuls the decision regardless of the merits.

TYPE 2: SUBSTANTIVE ENVIRONMENTAL LITIGATION (longer, costlier)

Argue the decision is substantively unlawful — e.g. it authorises harm a protected-site rule forbids. Slower and evidence-heavy; this is where your Layer-2 documentation earns its keep.

TYPE 3: POST-APPROVAL / COMPLIANCE CHALLENGE (often high-yield)

Once built or under construction, monitor compliance with the environmental conditions and the permit. Breaches can trigger enforcement by the environmental inspectorate (WIOŚ), support complaints, and ground fresh challenges. Serious environmental offences can be reported to the prosecutor.

Legal Strategy Decision Tree

1. **Is the comment window open?** → File comments now; if you are an organisation, **join under art. 44** in writing and keep proof.
2. **Has the environmental decision issued?** → File the *odwołanie* within 14 days to the SKO/GDOŚ, through the first-instance body.
3. **Second-instance decision stands?** → File the *skarga* to the WSA within 30 days; request *wstrzymanie wykonania* if harm is imminent.
4. **Project built?** → Monitor compliance; use WIOŚ enforcement and, where warranted, the prosecutor.

Litigation Success Factors

A registered organisation that joined under art. 44 (or a party-status resident); a rigorous, expert-backed evidence file; a clear procedural defect; strict deadline discipline; and competent administrative-law counsel (mandatory at the NSA). Missing any one weakens the case.

What to Avoid: Legal Failures

The single most common fatal error for organisations: **not joining under art. 44 at first instance**, which forfeits the right to appeal — no matter how strong the case. Then: missing the 14-day appeal or 30-day court deadline; relying on sentiment instead of a documented legal ground; filing without keeping proof; and going to court (especially the NSA) without proper counsel.

The European Backstop

Beyond the *odwołanie* and the administrative courts, Poland's EU membership gives an added and sometimes decisive layer. Where a decision breaches the EU environmental directives — the **Environmental Impact Assessment**, **Habitats**, **Birds**, or **Water Framework** directives — a complaint to the **European Commission** can open infringement scrutiny of Poland, and the directives strengthen a domestic challenge because the courts must read Polish law consistently with them. The **Aarhus Convention** reinforces the rights to information, participation, and access to justice, and the courts have taken breaches of them seriously. The domestic **ombudsman** (*Rzecznik Praw Obywatelskich*) is a further channel for a documented irregularity. Pursue these together: register early, join the proceeding, use the *odwołanie* and the *WSA*, and hold the European backstop behind them — a well-documented directive breach is both a domestic ground and an EU lever the government cannot simply ignore, and the two reinforce each other, a pending Commission complaint lending weight to the domestic challenge while the domestic record documents the breach for Brussels.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often win in Poland — so you file the right fact against the right rule.

Faulty or absent public participation → procedural defect. If the comment window was skipped, too short, or your comments went unaddressed, that supports annulment. Feed it with: the dated *obwieszczenie* (or its absence), your filing confirmations, and the decision's failure to address your points.

Failure to serve a party who joined under art. 44 → defect. If your organisation joined but was not treated as a party, that is a clean procedural ground. Feed it with: your art. 44 declaration and its dated confirmation.

No genuine assessment of alternatives → defect. Feed it with: the report's alternatives section, showing it points only to the developer's variant.

Ignored cumulative impacts → defect. Several nearby projects assessed in isolation. Feed it with: a map and list of the other projects, and the report's silence on their combined effect.

Inadequate Natura 2000 assessment → annulment. Feed it with: the Natura 2000 data form and your expert's critique of the assessment.

A conflicted official who was not excluded (art. 24 KPA) → annulment on a lower bar. You need not prove corruption; an official who should have been excluded but took part can void the decision. Feed it with: the ownership and interest records showing the connection.

Grave defects (art. 156 KPA) → invalidity. For the most serious errors — a decision issued without legal basis, or grossly violating the law. Feed it with: the specific legal breach, argued by counsel.

The pattern: match one clean, documented defect to one clear rule, and lead with the procedural ones — they annul a decision without your having to win the argument about whether the project is "good." And remember the gateway: for an organisation, none of this is reachable unless it joined under art. 44 at first instance.

One Fact, Many Arguments

A single documented fact does several jobs at once. Take one finding — that the environmental decision (*decyzja o środowiskowych uwarunkowaniach*) was issued on an assessment that ignored an impact the record shows. As a **legal argument**, it is a ground for the appeal (*odwołanie*) and, then, the administrative court (*WSA*) — provided you **joined the proceeding early** as a party or a registered organisation, the step that preserves standing. As an **EU argument**, it engages the EIA and Aarhus obligations that bind Poland and give a powerful backstop where national process falls short. As a **political argument**, it shows a decision taken without honest examination. As a **media argument**, it is concrete. Going through your strongest facts and asking what each proves to the appeal body, the *WSA*, an official, and a newsroom turns your file into an argument bank — and in Poland the decisive move is to be a party from the start, so the *odwołanie* and the court are open to you.

STEP 5: MEDIA STRATEGY

Media rarely stops a project by itself, but it raises the political cost of "yes," protects the campaign and its members,

sustains momentum through a long fight, and reaches allies and experts you would never find otherwise.

How Journalists Actually Work

Reporters need a story with a hook, a human face, a conflict, and a document. Hand them the report's own damning admissions (quoted, with page numbers), a named family whose livelihood or health is at stake, a clear deadline, and a map or striking image. Make it easy: a journalist who can write the story from your press kit in twenty minutes will; one who has to chase you for basics will not. Never give a fact you cannot stand behind — one exaggeration burns the relationship.

The Newsworthiness Formula

Local stakes + a credible threat + a deadline + a David-vs-Goliath frame + a visual (the threatened landscape, a packed meeting, a protest) = coverage. Polish project fights — lignite mines, quarries, incinerators, mega-farms — draw regional and national attention on exactly this formula: health, air, water, and livelihoods versus distant investors. The Turów mine drew international coverage precisely as a cross-border health-and-water story.

Know the Outlets That Cover This Beat

Map, before you need them: the local and regional press; the environmental desks of national outlets; regional TV and radio; and specialist environmental media and NGOs that amplify local fights. Build a contact list with names, beats, and deadlines.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable local contact. One trusted relationship with a regional journalist beats a dozen cold press releases. Offer access — to the site, to affected families, to your experts — and they will keep returning.

Why media matters even when it doesn't make the front page

Do not judge media only by whether a big outlet runs the story. Coverage does quieter work that often matters more: it reaches an expert who then reviews the report for free; it reaches a national organisation with a legal team that can join under art. 44; it reaches a councillor who did not realise how many constituents object; and it creates a dated public record that protects the campaign if relations later turn hostile. A steady drumbeat of accurate local coverage changes the political weather around a project more reliably than one national splash forgotten in a week.

Sample Media Timeline

Launch coverage with the comment window (a clear deadline is a natural news peg); refresh at each milestone — the mass comments, the environmental decision, the council vote, the appeal, the WSA filing, any suspension order. Each is a fresh reason to run the story again.

Media Measurement

Track coverage, but measure what matters: whether officials are responding, whether the coalition is growing, whether new experts or allies come forward, and whether the political tone around the project is shifting. Column inches are a means; the end is a decision-maker who now finds this project more trouble than it is worth.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. File important ones through the authority's registry (*dziennik podawczy*) or via the ePUAP electronic platform so there is a dated record, and keep every confirmation.

8A. Email to a reporter (story pitch)

Subject: [Town]: residents challenge [project] before [deadline] — documents attached

Dear [name],

A [project type] is proposed at [location, gmina]. The developer's own environmental report (raport OOŚ) concedes [specific admitted impact, quoted, with page number]. The public-comment window closes on **[date]**.

A local association, **[name]**, representing [number] residents and [any coalition partners], is filing comments and joining the proceeding as a party, and has [expert report / petition of X signatures]. The human stakes: [health/economic/environmental point].

I can connect you with affected residents, share the full file, and arrange a site visit. Could we talk this week?

[Name] · [Association] · [phone] · [email]

8B. Letter to a decision-maker

Subject: Comments on [project] — file [ref]

To [wójt/burmistrz/prezydent / RDOŚ Director]:

We write on behalf of [association] regarding [project] at [location]. We respectfully ask you to **[refuse the environmental decision / impose strict conditions]** for the following reasons, set out in full in our comments of [date]:

1. [Ground 1 — alternatives not genuinely assessed as the EIA Act requires.]
2. [Ground 2 — cumulative impacts with [other projects] not assessed.]
3. [Ground 3 — the Natura 2000 assessment for [site] is inadequate.]

We request written confirmation of receipt and a reasoned response. We are at your disposal to provide the underlying evidence.

[Signatories, association, contact]

8C. Public comments + art. 44 participation

To [the competent authority] Comments (uwagi i wnioski) and declaration of participation under art. 44 of the EIA Act, for [project], file [ref], announced by obwieszczenie of [date]

[Association name], a registered environmental association whose statute includes environmental protection, hereby **declares its participation as a party under art. 44 of the EIA Act**, and submits the following comments within the public-comment window:

1. **Procedure — alternatives.** [Alternatives, including the zero option, were not genuinely assessed, contrary to the EIA Act.]
2. **Cumulative impact.** [This project, with [others], must be assessed cumulatively; in isolation it understates the true impact.]
3. **Protected sites.** [The project affects [Natura 2000 site] and lacks an adequate appropriate assessment.]
4. **Baseline and impacts.** [Documented harm to water/air/habitat/farmland, with GIOŚ/GUS sources attached.]

We request that these comments be considered and answered, and that the project be **[refused / subjected to full OOŚ]**. We ask to be served with all further procedural documents as a party.

[Place, date] · [Signature] · [Contact] · [Annexes: evidence + the association's KRS registration]

8D. Coalition outreach email (to an organisation)

Subject: Join the coalition against [project] — [town]

Dear [organisation],

We are a local association opposing [project] at [location], which threatens [stakes]. We are building a coalition to file joint comments, **join the proceeding under art. 44**, share expert costs, and prepare a possible appeal and WSA challenge.

Your [legal capacity / regional reach / expertise] would strengthen the effort considerably — and a second organisation joining under art. 44 means a second party who can appeal. Could we meet to agree a written

arrangement?
[Name, association, contact]

8E. Records request (environmental information)

Subject: Request for environmental information — [project/site]

To [authority]:

Under the environmental-information provisions of the EIA Act (implementing the Aarhus Convention), we request copies of: 1. the full project file, the KIP, and the raport OOS for [project]; 2. all opinions and agreements in the file (RDOŚ, sanepid, Wody Polskie); 3. [specific data — water/air/species records for the site].

Please provide these within the legal period. If any part is withheld, please state the specific legal basis.

[Name/association, date, contact]

8F. Administrative appeal (odwołanie)

Subject: Odwołanie against environmental decision [ref], delivered [date]

To [SKO / GDOŚ], via [first-instance authority]:

[Association/party name], a party to the proceeding [having joined under art. 44 on (date)], appeals environmental decision [ref] on the following grounds: [procedural and substantive grounds, numbered — e.g. defective participation; inadequate Natura 2000 assessment; alternatives not assessed; cumulative impacts ignored]. We request that the decision be annulled [or declared invalid].

[Date, signature; file within 14 days of delivery, through the first-instance body]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

[Town] residents file [number] comments against [project] before [deadline]

[Association] today submitted [number] comments on [project] at [location], citing [top two grounds], and has joined the proceeding as a party. "[Short, human quote from an affected resident]," said [name, role].

The developer's own report admits [quoted impact]. The decision rests with [authority]; the comment window closes on [date].

Contact: [name, phone, email]. Photos, the full comments, and interviews available on request.

8H. Court challenge instruction (skarga to the WSA)

Subject: Skarga to the WSA against [SKO/GDOŚ decision] [ref], delivered [date]

To [counsel]:

[Association/party] intends to challenge [second-instance decision] before the WSA [region] on the following grounds: [procedural and substantive grounds, numbered], with a request to suspend execution (*wstrzymanie wykonania*) given the imminent risk of [serious/irreversible harm]. Please confirm the 30-day deadline from [date], the filing route (through the issuing body), and the 200 PLN fee, and advise on legal aid.

[Date, signature]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual file references and announcement dates, and — for anything heading to court — have administrative-law counsel review it. Deadlines are strict; a well-written letter filed late is worthless. And for organisations, remember

the golden rule: no art. 44 participation, no appeal.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can register an association or run a year-long campaign. If you have an afternoon a week, you can still do real damage to a bad project. In rough order of impact for the effort:

1. **File a comment before the deadline.** One page, in your own words, citing one or two concrete problems (no genuine alternatives; a Natura 2000 site; the water or odour impact). It costs nothing, goes on the record, and must be considered. This is the highest-value single act for an individual.
2. **If you can, get one organisation to join under art. 44.** This is the one thing an individual cannot do but an organisation can — and it unlocks every later legal step. Even a quickly registered *stowarzyszenie* that joins in time preserves the right to appeal.
3. **Get the raport and quote its worst admission back to the authority.** The developer's own words carry the most weight.
4. **Send one accurate email to a local reporter** (Section 8A). A single story raises the political cost and can reach an expert or a lawyer.
5. **Request the file** (Section 8E) — even if someone else uses it later.
6. **Tell your neighbours the deadline.** Ten individual comments are worth more than your one.

If you do only the first four, you have preserved the record, kept the legal door open, and put the project in the press. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Sometimes the deck is genuinely stacked: a municipality committed to a project, a "public purpose" (*cel publiczny*) designation, or a dedicated special-track statute (a *specustawa*) that compresses the procedure for roads or strategic investments. Assessing the tilt honestly helps you choose the right tools.

What This Tilt DOES (and DOESN'T DO)

A tilt makes the *front door* — participation — less effective, and makes the *courts and media* more important. It does **not** remove the law. If anything, shortcuts create legal vulnerabilities: a compressed procedure that skips a required step, a designation that ignores Natura 2000 duties, or a project split to dodge thresholds is exactly what the WSA can annul. A rushed process is a process with mistakes in it — and even under a *specustawa*, EU environmental-assessment obligations still bind.

Reading Your Tilt: Clean, Moderate, Severe

- **Clean.** Normal procedure, a decision-maker with no strong stake, a genuine comment window. Participation and documentation do real work; join under art. 44 and file rigorous comments.
- **Moderate.** An authority keen on the project, a developer-funded report, some political momentum. Weight shifts toward procedural appeal-and-court challenge and media — but still join and comment.
- **Severe.** A "public purpose"/*specustawa* project, a fast-track, developer-only reports, a government or big-employer publicly committed. Assume the decision will go against you and prepare the **appeal, the court case, and the media campaign** as your main instruments — while still joining under art. 44 and filing impeccable comments, because that is what preserves the legal record and your standing.

Documented Polish Dynamics

Energy and extraction are the live examples. Lignite mining and quarrying carry strong regional employment and political backing (the Turów and proposed-new-pit fights are the best known, and turned partly on water and cross-border impacts), and special-track statutes have been used to accelerate roads and strategic investments — communities have organised

against projects they say were rushed, and some of those fights reached the WSA and NSA on procedural grounds. The lesson repeats: **when the process is rushed, the process itself becomes the target.**

Assessment Framework — Determine Your Situation

Ask, honestly: Is a special-track or "public purpose" procedure being used? Was a required assessment step skipped or compressed? Is the deciding authority the project's champion, or dependent on the developer as a taxpayer? The more "yes" answers, the more you should shift weight from participation to (a) a rigorous procedural appeal-and-court challenge, prepared in advance, and (b) sustained media and political pressure that makes the tilt itself the story.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Some campaigns use lawful public demonstrations, marches, and visible mobilisation, which are protected forms of assembly in Poland. Organised gatherings have legal requirements (notice under the assembly law) and limits. Know the law, stay lawful, keep actions non-violent and well-stewarded, prioritise safety, and get legal advice before any action that could carry legal risk. This guide notes such tactics exist and are used; it does not advise breaking the law, and reminds you that the campaign's legal and moral credibility is an asset worth protecting.

Honest Assessment

Tilted fights are harder and some are lost. But "harder" is not "hopeless" — procedural rigour, the courts, and durable public pressure have overturned tilted approvals in Poland, and even an ultimate loss often buys years of delay, a forced redesign, a precedent, and an organised, experienced community. Concentrate force where the tilt is weakest — the rules the administration must still follow, and the EU obligations it cannot escape — and remember that developers abandon projects that become slow, expensive, and politically toxic.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it does not look the same in every institution. Read your specific situation actor by actor, because the type of capture changes which lever works — and, sometimes, tells you a lever is closed.

The gmina (wójt/burmistrz/prezydent and council). The most common pressure point: a small gmina financially dependent on one big taxpayer, or an official with a tie to a developer. Signs: a sudden MPZP change, a rushed vote, an ignored objection. Lever: the exclusion rule (*wylączenie*, art. 24 KPA) — an official who should have been excluded but took part can void the decision, a lower bar than proving a bribe.

The RDOŚ and technical staff. Capture here is usually softer — political direction to approve, or a raport written by a consultant paid by the developer. Signs: an assessment that contradicts obvious facts, or reads as the developer's document. Lever: attack the assessment's adequacy (alternatives, cumulative, Natura 2000) on the record and in court.

The starosta and the building-permit stage. Look for a permit granted against the MPZP or the environmental conditions. Lever: the permit is a separate decision that must conform to the environmental decision — a second point of challenge.

The developers. Watch for land bought quietly before a project is public, shell companies, and revolving-door hires of former officials. The money map (evidence-gathering section) is what surfaces the timeline a journalist or prosecutor needs.

The courts. Poland's administrative courts (WSA/NSA) are the sharpest lever, and reviewing the *legality* of decisions is squarely their role. Be honest, though, about timing and any specific concerns in your region: administrative cases can run long, so if the developer can build before judgment, the *wstrzymanie wykonania* (suspension) is essential — do not rely on a final ruling alone. Where you have specific reason to doubt a fair or timely hearing, weight the campaign toward participation, media, and political pressure alongside the litigation.

Legislators and "public purpose" / specustawa politics. Where a project is a national priority (energy, a strategic road, lignite for the grid), expect the administrative chain to lean toward yes, and a special-track statute to compress the

process. Not corruption, but capture of a kind; the honest path is procedural rigour — including the EU obligations a specustawa cannot erase — plus public pressure.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through lawyers and the proper bodies — the prosecutor (*prokuratura*), the CBA, the NIK for public money — not social media. A reckless public accusation can expose you to defamation liability and hand the developer a way to change the subject.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other over a campaign that typically spans a year or more. Here is how they fit onto one timeline.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the one-page fact sheet — project, deciding bodies, appeal body, the specific act to block, every deadline (including the art. 44 moment), the money map. - Register the *stowarzyszenie* with a clean, environment-focused statute — in time to join the proceeding. - Begin baseline documentation (Step 2, Layer 1) before ground is cleared. - Request the file and environmental data. - Start one-on-one organising (Step 3, Phase 1).

Months 2-3 (Launch). - File rigorous comments in the public-comment window and — as an organisation — **join under art. 44** (Step 4, Track 1): the critical, standing-unlocking deadline. - Hold the community forum and launch media timed to the window (Steps 3 & 5). - Complete the raport critique with expert help (Step 2, Layer 2), and file it with your comments.

Months 3-6 (Expansion). - Build the coalition; bring in organisations with legal capacity (several can join under art. 44 in their own right) (Step 3, Phase 3). - Finish the health/economic analysis (Step 2, Layer 3). - Sustain media at each milestone; prepare the legal strategy in advance.

Months 6-12 (Pressure & Decision). - As the environmental decision approaches, escalate lawful public pressure (Step 3, Phase 4). - When the decision issues, **move fast**: file the *odwołanie* within **14 days** to the SKO/GDOŚ; if it fails, file the *skarga* to the WSA within **30 days**, with a suspension request if harm is imminent (Step 4, Track 3).

Beyond 12 months. - Litigation can run many months to a few years, with a possible cassation to the NSA (counsel required). - If the project is approved and built, shift to **compliance monitoring and enforcement** (Step 4, Type 3). - Keep the association and the file alive; the experience and the organisation are assets for the next fight.

Warning Signs — Act Early

The comment window is open (comment and join now); land is quietly changing hands; a special-track or "public purpose" procedure is invoked; the developer is mobilising. Early action beats late reaction — the great majority of campaigns that lose did so because they engaged after a key deadline had passed, or (for organisations) failed to join under art. 44. The single highest-value thing you can do on day one is find and diarise every deadline — and register the association in time to join.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: identify the exact decision and deadline; register an association and **join the proceeding early**; build a rigorous, expert-backed, procedural-and-substantive evidence file; sustain a broad, non-caricaturable coalition and steady media; combine legal, political, and media pressure; and hit every deadline. Losing campaigns: rely on sentiment; splinter; peak too early; fail to join under art. 44; or miss the 14-day or 30-day deadline.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" takes several forms, and it is worth naming them so you recognise a win when you get one: - a **refused environmental decision**, or one so heavily conditioned that the project becomes uneconomic; - a **refused building permit** (or mining concession, for extraction); - an **annulment on appeal** (SKO/GDOŚ) or by the **WSA/NSA** — often on procedural grounds — that sends the project back or kills it; - a **developer withdrawal** after cost, delay, and reputational damage mounted; - or a decision so **tightly conditioned or reshaped** that the worst harm is avoided.

Polish communities have achieved each — usually through the combination of a rigorous file, an organisation that joined early, and sustained public pressure, not through any single lever.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone rather than only at the end. If a procedural ground is strong and the deadline is live, the appeal-and-court route may well be worth it — and the appeal alone succeeds often enough to be worth pursuing seriously. If every legal avenue is genuinely exhausted, redirect energy rather than burn out: to compliance monitoring, to the next decision point (the permit, the mining concession), or to the political arena — the next election, the MPZP revision. Continuing is not always right; neither is quitting at the first setback.

The Bottom Line

Poland's system leans toward "yes," but it hands communities two strong tools: a mandatory environmental decision with a real public-comment stage, and an appeal-and-court route that annuls unlawful decisions at a meaningful rate. The catch — and the opportunity — is the **art. 44 gateway**: organisations that join early hold real power; those that don't lose the right to fight in court. Communities that organise early, register and join, document rigorously, respect the deadlines, and combine legal, political, and media pressure have stopped, delayed, and reshaped destructive projects — and can again. No single step wins; the combination does. Start today by finding your deadlines, registering your association, and preparing to join the proceeding.